

M Laxmi, Mahabubnagar Dist vs Puttapally Venkatesh, Mahabubnagar on 2 February, 2026

Author: K. Lakshman

Bench: K. Lakshman

IN THE HIGH COURT FOR THE STATE OF TELANGANA
AT HYDERABAD

HON'BLE SRI JUSTICE K. LAKSHMAN
AND
HON'BLE JUSTICE B.R. MADHUSUDHAN RAO

FAMILY COURT APPEAL No.170 OF 2015

Date: 02.02.2026

Between:

xxxxxx

.. Appellant - Respondent

And

xxxxxx

.. Respondent - Petitioner

This Court made the following:

JUDGMENT:

(Per Hon'ble Sri Justice K. Lakshman) Heard Mr. Neeli Ashok Kumar, learned counsel for the appellant - wife and Mr. Vijay B. Paropkari, learned counsel for the respondent - husband.

2. Assailing the order dated 06.02.2015 in FOP No.31 of 2013 passed by learned Judge, Family Court-cum-VIII Additional District Judge at Mahabubnagar, the appellant herein preferred the present appeal.

KL,J & BRMR,J

3. The appellant herein is the wife and the respondent is her husband. Their marriage was performed on 20.05.2005 as per Hindu rites and customs. It is an arranged marriage.

4. It is apt to note that the respondent herein obtained a decree of divorce with his first wife, and informing the said fact, he married the appellant herein. The appellant in her deposition also admitted the said fact. Out of their wedlock, they were blessed with one daughter and son, who are now aged 18 and 19 years respectively. The respondent is an Employee in Railway Department.

5. The respondent has filed the aforesaid FOP No.31 of 2013 under Section - 13 (1) (ia) of the Hindu Marriage Act against the appellant herein seeking dissolution of their marriage on the ground of

'cruelty' contending that:

i. From the date of marriage, the appellant dislikes the respondent, but she married him as her parents forced her to marry the respondent.

ii. She used to visit her parents house frequently and repeatedly.

Even she left the house without his and his parents' consent. She also left the house on 04.04.2008 without information and KL,J & BRMR,J residing with her parents. Despite the elders and relatives convicted the appellant, she did not change her behavior. iii. Appellant threatened the respondent that if he insists her to live with him, she would kill him.

iv. To evade the petition filed by the respondent for restitution of conjugal rights, the appellant gave a report with Police, Kondurg on 17.04.2008 against the respondent herein, his mother, sisters and brother-in-law and the same was registered as Crime No.35 of 2008 for the offences punishable under Section - 498A of IPC and Sections - 3 and 4 of the Dowry Prohibition Act, 1961. However, the same was ended in acquittal vide C.C. No.153 of 2008.

v. The appellant has filed a petitioner under Section - 125 of Cr.P.C. vide M.C. No.6 of 2008, seeking maintenance, where the children were only granted maintenance. However, in the revision vide Crl.R.P. No.87 of 2011, maintenance of Rs.1,500/- per month was granted to the appellant herein, while confirming the amount of Rs.1,000/- granted to her children each, making a total of Rs.3,500/- per month was awarded, and the same has been paying by the respondent herein.

KL,J & BRMR,J vi. There is no possibility of re-union. Therefore, the respondent filed a petition vide O.P. No.23 of 2008 before the Senior Civil Judge, Mahabubnagar for divorce. During enquiry, the appellant herein stated that she would come and live with the respondent herein and, as such, the respondent herein did not press the said petition and the same was dismissed as not pressed on 19.04.2010.

vii. Later, the appellant came and joined the company of the respondent for about one (01) month. During the said period, the appellant made the life of the respondent miserable, and left the house of respondent on 20.05.2010 without information to him and has been living with her parents.

6. The appellant herein has filed counter opposing the said petition, contending that:

i. The respondent married earlier one Mrs. M. Hemalatha and harassed her. Within a short duration, he filed a divorce petition vide O.P. No.29 of 2002. The matter was settled between them before the Lok Adalat, where they obtained decree of divorce.

KL,J & BRMR,J ii. The respondent and his elders convinced the parents of the appellant that he is soft and sober and his first wife had harassed him and, hence, he obtained divorce from his first wife through Court. Believing the words of the elders, her marriage was performed with the respondent.

iii. At the time of marriage, the parents of the appellant gave a sum of Rs.1,25,000/-, five (05) tolas of gold and house-hold articles to the respondent as dowry.

iv. After four (04) months of the marriage, the respondent and his mother and sister started harassing her physically and mentally demanding additional dowry of Rs.3,00,000/-. Her parents were not in a position to meet such illegal demand. Despite mediating the matter through her elders, there was no change in the attitude of the respondent and his family members and finally on 05.04.2008, they gave sleeping pills to her with an intention to kill her and to perform another marriage to the respondent. She fell unconscious and thereafter the respondent shifted her to Government Hospital, Mahabubnagar to show that his intention is good.

KL,J & BRMR,J v. The respondent was forced to go with her parents from the Hospital itself and since then she has been staying with her parents along with her two children. She had no other option except to file criminal complaint against the respondent and his family members.

vi. She is the second daughter to her parents out of five daughters and they are not financially sound enough to meet the illegal demands of the respondent.

vii. If the divorce is granted to the respondent, her life would be ruined and so also the lives of her children. She is ready to lead marital life with the respondent provided the respondent and his family members treat her well and assure that they will not harm her and will not demand for additional dowry as there is danger to her life in the hands of his family members. viii. She discharged her matrimonial duties and gave birth to two children.

7. To prove the said cruelty, the respondent herein examined himself as PW.1 and his brother-in-law as PW.2. He has filed Exs.P1 to P5 document. To disprove the same, the appellant herein examined herself as RW.1 and she has filed Exs.R1 to R5 documents.

KL,J & BRMR,J

8. Perusal of record would reveal that the respondent herein has filed a petition vide O.P. No.29 of 2002 under Section - 9 of the Hindu Marriage Act, seeking restitution of conjugal rights against his first wife - Smt. M. Hemalatha, and the same was referred to Lok Adalat, Mahabubnagar. An Award dated 06.11.2004 was passed by the Lok Adalat after they were appeared and were persuaded to settle the matter amicably, after discussion, negotiation and conciliation. Therefore, the marriage of the respondent solemnized with his first wife - Smt. Hemalatha was dissolved in terms of

compromise.

9. The terms are mentioned in Memo, dated 07.10.2004, wherein the respondent herein agreed to pay an amount of Rs.75,000/- (Rupees Seventy Five Thousand Only), to his first wife and also to return motorcycle and 2½ tolas of gold. On receipt of the same, his first wife agreed for decree of divorce. Thus, Lok Adalat, Mahabubnagar, passed an Award under Section - 21 of the Legal Services Authority Act, 1987, dissolving the marriage of the respondent herein with his first wife - Hemalatha.

10. In the light of the above, it is apt to note that as per Regulation 17 (7) of the National Legal Services Authority (Lok KL,J & BRMR,J Adalats) Regulation, 2009, Lok Adalat shall not grant any bail or a divorce by mutual consent. Therefore, decree of divorce obtained by the respondent herein under Ex.R3 - Award with his first wife is contrary to the law.

11. However, as discussed above, the respondent herein has informed the said fact of taking divorce from his first wife to the appellant herein and she has admitted the same in her deposition. But, he has not mentioned the said fact either in the aforesaid F.O.P. No.31 of 2013 filed by him or in his deposition. There was no cross- examination on the said aspect by the appellant during cross-examination of PW.1.

12. Thus, the respondent herein has filed the aforesaid FOP No.31 of 2013 seeking dissolution of his second marriage with the appellant herein. He has filed the said application seeking dissolution of his marriage with the appellant on the ground of 'cruelty'. Therefore, he has to plead and prove the same. As discussed above, according to the respondent herein, the appellant gave a report with the police against him, his mother and sister for the offences under Section - 498A of IPC and Sections - 3 and 4 of the Dowry Prohibition Act, 1961. The police apprehended him. On completion KL,J & BRMR,J of investigation, the Investigating Officer laid charge sheet against them and the same was ended in acquittal vide judgment dated 19.03.2014 in C.C. No.153 of 2008 (Ex.P1). She along with her two children has also filed an application (Ex.P2) under Section -125 of Cr.P.C. vide M.C. No.6 of 2008, seeking maintenance against him. Vide order dated 02.11.2010 (Ex.P3), learned Judicial Magistrate of First Class, Shadnagar, awarded an amount of Rs.1,000/- each to petitioner Nos.2 and 3 therein i.e., daughter and son, and did not grant any amount to the appellant herein. As against the same, the appellant herein filed a revision vide Crl.R.P. No.87 of 2010 (Ex.P4). Vide order dated 10.08.2011 (Ex.P5), learned Judge, Family Court-cum- Additional Sessions Court, Mahabubnagar, awarded an amount of Rs.1,500/- per month to the appellant herein towards maintenance, while confirming the amounts granted to the children i.e., Rs.1,000/- each. Thus, according to the respondent herein, initiation of the aforesaid proceedings amounts to cruelty.

13. Learned counsel for the respondent herein contended that the appellant herein did not file any appeal challenging the judgment in C.C. No.153 of 2008, acquitting the respondent and his mother and KL,J & BRMR,J sister. Therefore, initiation of criminal proceedings in C.C. No.153 of 2008 also amounts to cruelty.

14. Learned counsel for the appellant herein, on instructions, would submit that the appellant did not prefer any appeal challenging the judgment in C.C. No.153 of 2008 and that the only explanation offered by him is that the appellant is intending to continue matrimonial life with the respondent and, therefore, she did not prefer any appeal. If the appellant prefers an appeal, it will further aggravate the situation and further strain the relationship between the appellant and the respondent. He also placed reliance on the decisions in Lakshmi Chaitanya v. B. Sharat Chandra 1; V. Venkateshwrlu v. V. Mamatha 2; Vytla Alivelu Manga Devi v. Vytla Venkata Lakshmi Narasimha Palla Rao 3, Anchuri Subbaraju v. Smt. Anchri Sunitha 4 and Uppuluri Laxman v. Uppuluri Rajani⁵

15. Thus, giving report with the police against the respondent, his mother and sister under Section - 498A of IPC and Sections - 3 and 4 of the Dowry Prohibition Act, 1961 and filing an application . 2013 (4) ALD 416 (DB) . 2014 (2) ALD 437 (DB) . 2014 (1) ALD 719 (DB) . AIR 2016 HYD. 12 . II (2025) DMC 229 (DB) (Teln.) KL,J & BRMR,J under Section - 125 of Cr.P.C. for maintenance do not amount to cruelty.

16. The learned Family Court observed that the appellant took money and then resiled from the agreement and it clearly amounts to 'cruelty'. The said finding of learned trial Court is contrary to record. Learned counsel for the respondent herein fairly accepts for the same.

17. As discussed above, cruelty is not defined in any Statute. It is a course or conduct of one, which is adversely affecting the other. We have to consider the entire evidence and the allegations made by the husband, assess the same and come to a conclusion that the same amounts to cruelty or not.

18. Once the parties have separated and the separation has continued for a sufficient length of time and one of them has presented a petition for divorce, it can well be presumed that the marriage has broken down. The Court, no doubt, should seriously make an endeavour to reconcile the parties; yet, if it is found that the breakdown is irreparable, then divorce should not be withheld. The consequences of preservation in law of the unworkable marriage KL,J & BRMR,J which has long ceased to be effective are bound to be a source of greater misery for the parties.

19. Human mind is extremely complex and human behaviour is equally complicated. Similarly human ingenuity has no bound, therefore, to assimilate the entire human behaviour in one definition is almost impossible. What is cruelty in one case may not amount to cruelty in other case. The concept of cruelty differs from person to person depending upon his upbringing, level of sensitivity, educational, family and cultural background, financial position, social status, customs, traditions, religious beliefs, human values and their value system as observed by the Apex Court in Samar Ghosh v. Jaya Ghosh 6.

20. Matrimonial cases before the Courts pose a different challenge, quite unlike any other, as we are dealing with human relationships with its bundle of emotions, with all its faults and frailties. It is not possible in every case to pin point to an act of "cruelty" or blameworthy conduct of the spouse. The nature of relationship, the general behaviour of the parties towards each other, or long separation between the two are relevant factors which a Court . (2007) 4 SCC 511 KL,J & BRMR,J must take into consideration as observed by the Apex Court in Rakesh Raman v. Smt. Kavita 7.

21. Cruelty is a course or conduct of one, which is adversely affecting the other. The cruelty may be mental or physical, intentional or unintentional. The cruelty alleged may largely depend upon the type of life the parties are accustomed to or their economic and social conditions and their culture and human values which they attach importance. Each case has to be decided on its own merits as held by the Apex Court in Naveen Kohli v. Neelu Kohli 8.

22. As discussed above, it is second marriage to the respondent and first marriage to the appellant. They have two children, who are now aged 18 and 19 years, respectively. Considering the said aspects, we have directed both the appellant and the respondent along with their children to present before us and we have interacted with them.

23. Learned counsel for the respondent would contend that both the respondent and the appellant are staying separately since last twelve (12) years. It is an irretrievable breakdown of marriage. There is no possibility of re-union between the parties. He has placed . 2023 AIR (SC 2144 . (2006) 4 SCC 558 KL,J & BRMR,J reliance on the judgment dated 13.02.024 in FCA No.418 of 2012 rendered by this Court in which one of us (KL,J) was a Member.

24. It is settled law that neither this Court nor Family Court can dissolve the marriage on the ground of irretrievable breakdown of marriage. Moreover, the respondent filed the aforesaid FOP No.31 of 2013 against the appellant seeking dissolution of marriage on the ground of 'cruelty'. Therefore, the respondent has to plead and prove the same by producing cogent evidence. In the present case, he failed to produce any cogent evidence. Learned Family Court granted decree of divorce on the ground that the report given by the appellant with the police, the police registered a case against him and his family members and arrested the appellant and his family members etc. On the said rounds, the learned Family Court cannot grant decree of divorce on the ground of 'cruelty'.

25. Deposition of PW.2, brother-in-law of PW.1 is not useful to the respondent. Presently, the respondent is aged about 47 years, the appellant is 40 years and their children are aged 18 and 19 years, respectively. Without considering the said aspects, learned Family Court granted decree of divorce. Therefore, on consideration of the KL,J & BRMR,J evidence on record, both oral and documentary, the impugned order passed by learned Family Court is liable to be set aside.

26. This Family Court Appeal is accordingly allowed, setting aside the order dated 06.02.2015 in FOP No.31 of 2013 passed by learned Judge, Family Court-cum-VIII Additional District Judge at Mahabubnagar. FOP No.31 of 2013 filed by the respondent seeking dissolution of marriage between him and the appellant herein is hereby dismissed. However, there shall be no order as to costs.

As a sequel thereto, miscellaneous applications, if any, pending in the appeal case shall stand closed.

K. LAKSHMAN, J _____
B.R. MADHUSUDHAN RAO, J 2nd February, 2026 Mgr